

opposes the motion to the extent it seeks to encumber, charge, or recover any of the judgment from his member interest. Plaintiffs' reply clarifies the motion pertains only to the member interests of defendant Saetes.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. Since then, plaintiffs filed proofs of service on June 16, 2026 showing mailed service to defendant Saetes.

“If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section . . . 17705.03 of the Corporations Code.” (Code Civ. Proc., § 708.310.) Corporations Code section 17705.03 authorizes the court, on application of a judgment creditor, to “enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.” (Corp. Code, § 17705.03, subd. (a).) To effectuate a charging order, the court may appoint a receiver of the distributions subject to the charging order or make all other orders necessary to give effect to the charging order. (*Id.* at subd. (b).) “The court may appoint a receiver to enforce the judgment where the judgment creditor shows that, considering the interests of both the judgment creditor and the judgment debtor, the appointment of a receiver is a reasonable method to obtain the fair and orderly satisfaction of the judgment.” (Code Civ. Proc., § 708.620.)

Here, plaintiffs present evidence, and a review of the court file confirms, that they are the prevailing parties in this action and the judgment creditors and defendant Saetes is the judgment debtor. Plaintiffs present evidence Saetes is a managing member of Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Plaintiffs argue that because Saetes is a managing member of both limited liability companies, the court must appoint a receiver and cite to Corporations Code section 17705.03(b)(2). However, the cited source—summarized in the paragraph above—does not support plaintiffs' claim that the court “must” appoint a receiver. Plaintiffs submit insufficient evidence to support that appointment of a receiver is necessary or would even be helpful at this stage.

Based on the foregoing, the motion for charging order is granted against defendant Saetes' member interests in Sierra College Brace 18, LLC and Darkhorse Estates, LLC. The motion for appointment of a receiver is denied without prejudice.

12. S-CV-0055573 Moore, Rachella v. CRIBL Inc.

Defendant's motion for protective order

The motion is dropped in light of the moving party's request.